

DRAFT CONSTITUTION AND BYLAWS

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IAPEN INDIA ASSOCIATION FOR PARENTERAL AND ENTERAL NUTRITION incorporation as Pursuant to Sub-Section (2) of Section 7 and Sub-Section (1) of Section 8 of the Companies Act, 2013 (18 of 2013) and Rule 18 of the Companies (Incorporation) Rules, 2014 The Corporate Identity Number of the Company is U85320PN2019NPL186896 .

1. INTRODUCTION

The name of the of the Society Company shall be “IAPEN INDIA Association for Parenteral and Enteral Nutrition” herein after referred to as the “IAPEN INDIA” an independent Scientific body as Not-for-Profit basis and not aligning with any particular Political Party or Religion.

Registered Office - Registered Address as per record available in Registrar of Companies IAPEN INDIA ASSOCIATION FOR PARENTERAL AND ENTERALNUTRITION SURVEY NUMBER 8/1, OMKAR COLONY, LANE NUMBER 1, PIMPLE GURAV, PUNE, MAHARASHTRA, INDIA, 411061. The Registered office of the Company will be situated in the State of Maharashtra.

MISSION STATEMENT

- I. To improve the nutritional care of people at risk of malnutrition, whether in hospitals or in the community and across all age groups.
- II. To improve the basic and advanced clinical research in healthcare and to organize the consensus statements about clinical care and quality control.
- III. To identify and make certain that those at risk of malnutrition or other nutritional problems are appropriately recognized and managed

AIM

- I. To improve the nutritional care of people at risk of malnutrition in hospitals or in the community and across all age groups.
- II. To improve the basic and advanced clinical research in healthcare and to organize the consensus statements about clinical care and quality control.

OBJECTIVES

1. To support individual patients and groups needing nutritional intervention
 - a. IAPEN INDIA will try to work for patient centered policies relating to nutritional care.
 - b. IAPEN INDIA will help promote equality of access to nutritional care for all patients.
2. To establish a sound basis to enable realization of the above objectives.
 - a. IAPEN INDIA will initiate and try approach various relevant government departments, specialist societies and other key stakeholders at national and/or international level.
 - b. IAPEN INDIA will develop a robust financial structure and the company shall invest the investments from the Income and funds of the company as per Sec. 13(1)(d) r.w.s.11(5) of the Income Tax Act 1961.

3. To raise awareness about IAPEN INDIA and its role in the healthcare agenda
 - a. IAPEN INDIA will actively seek to increase its membership by inviting new Individual Affiliates and new Associate Clinical Interest Groups.
 - b. IAPEN INDIA will develop a commercially viable regular publication to share and disseminate good and evidence-based practices in multidisciplinary healthcare.
 - c. IAPEN INDIA will develop effective links with other similar organizations while maintaining its singular position of expertise both nationally and internationally.
 - d. IAPEN INDIA will establish regular meetings at regional/national/international level to encourage networking/information sharing.
4. To develop a robust and cohesive approach to information gathering about nutrition provision at national and international level and to identify/redress any gaps.
 - a. IAPEN INDIA will support specific relevant initiatives targeted at identified areas of practice so that information can be collected and disseminated.
 - b. IAPEN INDIA will produce regular reports and promote national standards of practice and members to actively participate for same.
5. To identify which people are at risk of malnutrition
 - a. IAPEN INDIA activities, related to under/over nutrition, will be fully integrated in both hospital and community settings.
 - b. IAPEN INDIA will ensure that its expertise and experience of its members in the metabolic and practical management of patients with disease-related malnutrition is recognized and disseminated
 - c. IAPEN INDIA will help its members identify and disseminate best practice in the nutritional repletion of malnourished patients of all ages- by promoting or organizing trainings – virtual/in person/workshops/courses/ framing guidelines/ seminars/ national and international Conferences/ publication
6. To provide support for multi-professional / disciplinary groups wishing to develop a Special Interest or Core Groups for different health conditions

- a. IAPEN INDIA will promote and develop the Education and Training Courses addressing different health conditions and its nutritional management and other such initiatives
- b. IAPEN INDIA will develop standards through which the IAPEN INDIA support team and IAPEN INDIA core group can identify good practice and benchmark their own activity.
- c. IAPEN INDIA will help lead other clinical governance initiatives related to nutritional intervention.
- d. To contribute to enhanced multi-professional education and research in clinical C community nutrition
- e. IAPEN INDIA will have clearly described and appropriately funded programs for scientific research/development.
- f. IAPEN INDIA will have an explicit development programs to enhance education and clinical practice and run relevant courses to promote nutrition care for various diseases and/or prevention of these courses will have set fees.
- g. IAPEN INDIA will host an Annual Congress reflecting current trends in research and clinical practice with the help of local organizing teams of its various Chapters pan India and/or IAPEN INDIA Core Group.

2 MEMBERSHIP

2.1 Procedure

- a) IAPEN INDIA being an inclusive multidisciplinary health care association company invites Members from all Health Care Professionals of Medical and Allied Medical professionals as per clause 2.3.
- b) Membership application should be proposed C seconded by IAPEN India life members. IAPEN India National Executive Committee (NEC) reserves the rights to accept/ reject the Membership.
- c) For any discrepancies or agreements requiring special provisions, the designated committee member should seek approval from IAPEN INDIA Secretary via email communication who will revert with the NEC decision.

2.2 Memberships Category

- a) Student Members
- b) Life Member
- c) Overseas Member

2.3 Membership Eligibility

a) Student Member

A person shall be qualified as student member if pursuing under -graduation innutrition, dietetics, medicine C allied health profession courses. The membership shall be valid for a year, which has to be renewed every year. After course completion the member can avail life membership.

b) Life Member

Life Member- A person shall be qualified to be admitted as a Life Member if they hold graduation or post graduation from Health Care Professionals of Medical and Allied Medical professionals. The certificate of qualification shall be verified and approved by the central committee. The membership shall be availed on one-time payment.

c) Overseas Member

Shall consist of individuals from countries outside India who meet the same qualifications of Student (Member or) Life Member (as detailed above). Process of availing membership shall be the same as domestic membership. These Members shall not be entitled for the Governing Body and they shall be exempted from attendance requirement rules and regulations enforced on domestic members.

Membership Fee : Membership fee and / or charges will be specified from time to time C will be approved by IAPEN India National Executive Committee (NEC).

It needs to be displayed and circulated to members within 30 days from the days from the date of change if any.

2.4 Process of Expulsion of membership:

Only IAPEN INDIA Directors and/or NEC has the power to remove/cancel/ withdraw or suspend Membership of any individual with 2/3rd of NEC majority. NEC should give reasonable opportunity of being heard to the person whose membership is proposed to be terminated.

Example situations where Membership can be removed / withdrawn/ cancelled or suspended these are few of many

- i. Any member who is not compliant with the Aims, Objectives, constitution, amendments, rules-regulations and resolutions of IAPEN INDIA designated, recognized chapters, core groups, NEC and any other committees appointed or recognized by IAPEN INDIA.
- ii. Any member who indulges in Anti IAPEN INDIA activities.
- iii. Any member who is involved in tarnishing or degrading the image of IAPEN INDIA.
- iv. Any member involved in any illegal activities in the name of IAPEN INDIA.

- v. Any member involved in disrupting IAPEN INDIA's approved activities.
- vi. Any member not adhering to financial compliances, or involving in financial malpractice/misappropriation in the name/funds of IAPEN INDIA.

2.5 Privileges of Membership:

- a) All Life Members shall be entitled to vote and participate in all activities of the Company. Only Life Members of IAPEN INDIA will be eligible to be an officer of the Company.
- b) Student Members and Overseas Members will have all the privileges of Member but will not have the right to vote or nominate or to serve on the Executive committee or stand for any election.
- c) No member who has arrear of their dues towards IAPEN INDIA will have the right to vote until their dues are paid before the time of voting.

2.6 Soft copy of Members List:

A soft copy of the members shall be kept by the National Treasurer in which membership in the various categories will be recorded setting down the names and addresses of the respective members. Any change in address and e-mail must be intimated to the Secretary and confirmation must be received from the Secretary that the necessary change in the register has been effected.

3. OFFICE BEARERS OF IAPEN INDIA ASSOCIATION FOR PARENTERAL AND ENTERAL NUTRITION

IAPEN INDIA organization's structure consists of Board of Directors, National Executive Committee, Chapter Office Bearers and Core Group Office Bearers. These groups/committees will not have any separate legal entity (board of directors is a legal entity) and they are to be formed for the purposes of administration, convenience, efficient functioning and growth of the organization. All the designations & roles in NEC, Chapter Office Bearers, Core group Office Bearers will be honorary, non-remunerative roles. All Office Bearers will be Life Members of IAPEN INDIA Association for Parenteral and Enteral Nutrition.

1. Nomenclature and Tenure of the Office bearers of IAPEN INDIA Association for Parenteral and Enteral Nutrition:

a. Board of Directors

1. Board of Directors will comprise of three Life members for IAPEN INDIA who have served at least 5 years in NEC and after approval of existing board of directors.
2. Association past president by default will be nominated as the member of Board of Director
3. The tenure of the Board member can be increased by the approval of 1/3rd of the board members
4. The strength of board members can be increased by the approval of 1/3rd of the board members
5. It comprises of Founder Directors as default members of board for lifetime

b. National Executive Committee:

1. NEC is responsible for the day-to-day management and working of the association EXCEPT changing the Constitution By Laws.
2. NEC is responsible to frame the policies within the framework described in the bye laws and in the spirit of Association's aims and objectives and government directives. The same will be communicated to all the recognized chapters from time to time.
3. NEC may as and when it requires constitute one or more sub committees for the efficient discharge of its function.
4. NEC will constitute core groups in the specialized nutritional areas in order to get best knowledge and expertise from the country to contribute to the specialized area
5. All major decisions to be taken with consultation with the Board of Directors (BOD) and with their two third majority, and their decisions shall be final.
6. NEC has the rights to take administrative, disciplinary and legal action against the life members of the associations, chapter office bearers, core group members, Invitees and NEC members in situations violating the byelaws, acts and any activity which may damage the associations' reputation.
7. NEC is responsible to host it's annual scientific conference in alignment with recognized local chapters
8. NEC will hold an annual business meeting during the annual conference or any other time and place.
9. NEC will be selected on the basis of voting through election process.
10. NEC will resolve and take all decisions democratically with simple majority.

Eligibility for candidacy shall be that he/she should mandatorily be life members of IAPEN It will comprise maximum of 15 members which will comprises as follows:

- a. Hon President
- b. Hon Vice President-Nutrition
- c. Hon Vice President-Medical
- d. Hon Secretary
- e. Hon Treasurer

Hon Immediate Past President

Joint secretary

Joint Treasurer

Two Hon Committee Members may be nominated by majority of board of directors

Two EC member to be from medical and rest as EC members of NEC. Additionally, the Board of Directors is an undisputed integral part of the NEC.

To ensure a pan India representation into the NEC it is better that minimum one ordinary member to represent from each zone of the country (zonal distribution is as per annexure)

- The post of president will be alternatively shared by medical and nutrition/dietetics professionals through alternative elections.
- The members of the Board of Directors are a part of the NEC.
- Tenure of each NEC will be of three years.
- The mandates of Executive Committee members can be jointly prolonged for a maximum of two years under exceptional circumstances caused by force majeure events, such as pandemics, war, climate catastrophes, resulting in substantial prolonged limitations of the activities of the whole Executive Committee for at least one year

b. Chapter Office Bearers:

1. IAPEN INDIA will have district wise Chapters all across India.
2. Chapters of IAPEN INDIA will not have any separate legal identity
3. Chapters will work under the scope of NEC directives adhering to the provisions mentioned in byelaws, Standard Operating Procedures (SOPs), and resolutions of NEC and AGM
4. These chapters are reorganized only for the purpose of administrative convenience and efficient functioning.
5. It will comprise maximum of 15 members which will comprise of Chapter President, Vice President, Secretary, Joint secretary, Treasurer, Joint Treasurer, Executive Committee Members.
6. NEC will enter in to Memorandum of understanding with the chapter office bearers (namely President, secretary and treasurer) to ensure implementation of bylaws, SOPs, resolutions from NEC and AGM and legal and financial compliance.
7. Tenure for all chapter office bearers is maximum 3 years.

2. Functions of the Office bearer

a. National President:

- l. Shall preside over and conduct meetings of the Association its National Executive committee and shall have a casting vote.

- II. Shall supervise the general activities of the Association
- III. Shall endeavor himself /herself to improve the finances of the Association.
- IV. May appoint sub-committees if and when necessary, with terms of references decided by the Directors or the national executive committee and BOD.
- V. He/ She shall have the right to call national executive committee and general body meeting in times of emergency.
- VI. The President shall prepare an address to the Annual General Meeting of the Society
- VII. President shall announce/declare the forthcoming year's ICNC host Chapter in the AGM of the present year

b. National Vice Presidents (Medical s Nutrition)

There will be two posts of Vice presidents representing Medical and pure Nutrition/Dietetics professions.

- I. Hon. Vice President Medical C Nutrition Shall be the chairman C vice Chairman alternatively of the scientific committee for annual congress of the association and be responsible for organizing the scientific program/agenda during the annual conferences.
- II. In the absence of the President, the Vice president/s from other profession than of president, i.e. if president is from medical profession, Vice president of Nutrition shall perform the duties of the President.
- III. The vice presidents are also responsible for formation C development of Chapters C core groups in agreement with the NEC.

c. National Secretary

- I. Shall call monthly meetings of the National Executive Committee (hence forth referred as NEC),
- II. Shall call emergency meeting or on a written requisition of not less than 4 members of the NEC or not less than 1/3 of the NEC members whichever is higher.
- III. Shall share the minutes of the meetings of the Committee and the Annual General Body.
- IV. Shall see that decisions made by the NEC are carried out by the persons concerned.
- V. Shall carryout all correspondence with transparency and honesty on behalf of the Association and keep NEC updated.
- VI. Shall prepare and issue to all members a written report of the preceding year's transactions to be read at the Annual General Meeting (AGM), held during Annual Conference of the Association.
- VII. May call for from any office bearer, any paper pertaining to the work of the Association, for inspection and necessary action.
- VIII. Shall issue notices for the meetings (e-mail information will be considered as valid notice of meeting).

d. National Treasurer

- I. Shall in the absence of the Secretary, have the powers and rights and duties as those of the secretary

- II. Shall assist the Hon Secretary in day-to-day operations.
- III. Will arrange collection of funds necessary for maintenance of the Association and its activities and keep them in deposit with a bank approved by the Association.
- IV. Shall issue receipts for all values received for the Association. Shall support and along with the auditor maintain financial compliance of the association.
- V. Shall keep bills or vouchers and also payee's receipts whenever possible for payments made by him/her and maintain a regular record of Associations accounts.
- VI. Shall operate accounts of the association jointly with the Secretary or the President or the Board of Directors.
- VII. Shall present monthly income expenditure statement during NEC meetings.
- VIII. Shall prepare and make available to the NEC, Director the annual statements of income and expenditure for the annual report. Also, to be responsible for getting the audit of the accounts by authorized Auditor.
- IX. Will be authorized to make expenses available to members for scientific, academic and administrative activities of the association after approval from the NEC and BOD.
- X. The local Organizing Secretary of any Conference/ Workshop organized under the Auspices of the association shall submit the audited account within one month of the Conference/ Workshop and 15% should be deposited with IAPEN INDIA Central account.

e. Joint Secretary

- I. Shall notify the NEC on monthly meetings
- II. Shall support secretary in preparing agenda for the meetings
- III. Shall keep a record and share the minutes of the meetings to the secretary
- IV. Shall carryout all correspondence with transparency and honesty with the permission of secretary on behalf of the Association and keep NEC updated.
- V. Will mail all members the periodical newsletter of IAPEN INDIA which will be electronically sent to all members.
- VI. Maintain a soft copy of chapter office bearers

f. National Executive Committee Members

- I. The executive committee member will be working under the guidance of the President for the development of IAPEN INDIA in different core areas.
- II. National Executive Committee will be responsible for smooth functioning of the organization and will also give and receive suggestions from Board of Directors to achieve objects of the organization.
- III. Founder Directors, Board of Directors will also be integral part of National Executive committee.
- IV. Any major decision to be taken by National Executive Committee by simple majority members attending the meeting in favor of any decision.
- V. Day to day functioning, decision, voting will be done by all members of National Executive Committee.

3. Elections:

The national executive committee (NEC) will act as the executive body of the association. The constitution of the NEC is as provided in Clause 3.1(b)(x).

1. President of the association
2. Vice President– Nutrition
3. Vice President– Medical
4. Secretary of the association
5. Treasurer of the association
6. Joint secretary
7. Joint treasurer
8. Two members may be nominated by the majority of the Board of Directors
9. Two EC member- medical, rest are EC members and additionally board of directors to be integral part of NEC.

- President, Vice presidents, secretary, joint secretary, treasurer, joint treasurer and the nine national executive members are elected by the member of the association by secret voting.
- Immediate past president by default is a member of NEC.
- The term of each NEC member will be three years.
- NEC conducting bye-election within six months of position being vacant. If the tenure of the NEC is ending within six months the post will remain vacant, till the new NEC elections.
- Election officer has to be appointed for each election by the NEC. In exceptional situations, the NEC can permit the election officer to go ahead with online election process.
- Election process can be done online or offline to ensure maximum participation.
- The maximum tenure for NEC member at one stretch is three years. One third of the members constitute the quorum and majority is defined as above 50% of the members present.
- Executive committee can be dissolved by a resolution approved by 2/3rd majority in the GB with the approval of the Director board based on a resolution signed by 1/10th of the members circulated to all members two weeks in advance.
- Any member of the executive committee [other than Board of Directors] can be removed by the NEC with a 2/3rd majority after completing an enquiry for the purpose for which the removal is sought by any NEC member.
- President of the association should be well respected professional in the field of Medical or nutrition with more than a decade of experience.
- He/she should have an excellent track record of involvement in clinical, teaching and research in clinical and medical nutrition.
- He/she should be a member of IAPEN India for a minimum of five years and he/she should have served as NEC member for a minimum of two years.
- The person contesting for the post of the secretary should have served a minimum of two years as NEC member and should be a member of the association for a minimum of five years.
- All executive committee members, except in the case of first election, should have a minimum of five years membership in the association and should have served chapter president or secretary for at least one term.

Election officer

- The Elections to the National Executive Committee shall be held after every three years.
- The person who holds the post of Immediate Past President at the time of the election process shall nominate the National Election Officer and She/he shall be responsible for the conduct of the Elections.
- The National Election Officer shall not be eligible to contest for any post in the elections conducted by her. No member is eligible to contest for more than one post in the same election.
- The Election Officer upon advice and consensus from the Board of Directors shall have the right to change the logistics of the election process in the face of exigencies or introduce rules in alignment with NEC for other modes of voting like electronic voting as and when required, and necessary for smooth election process.

4. Election Process:

- a. Only IAPEN INDIA Chapter Office bearers [president and Secretary] with minimum one term in office can apply for the post of NEC
- b. NEC will announce elections at least 3 months before the date of election
- c. The nomination form must bear the signatures of nominee signifying his/her approval and of proposer and seconder. The nominated candidates, the proposer and the seconder should be life members of IAPEN INDIA Association for Parenteral and Enteral Nutrition. Last date for submitting the nominations will be one month before the date of election. Any nominations received after the fixed dead line will be invalid.
- d. Participant withdrawal will be allowed till the time of election.
- e. Voting will be done only by the LIFE Members of IAPEN INDIA Association for Parenteral and Enteral Nutrition as on 31st December of the preceding year.
- f. In the event of a tie, the National President and Board of Directors with founder directors shall have a casting vote in addition to the vote she/he has already exercised.
- g. In some circumstances as approved by 3/4th majority of Directors and/or BOD and NEC (e.g., election of the Chairman, General Secretary, Treasurer) a vote can be organized either by correspondence or using a virtual voting system. Anonymity and security of the voting system will be ensured. At least two months will be allowed between notifications and voting. Votes are collected by the Chairman or the General Secretary or by an appointed Secretariat proposed by the Executive Committee. At least two officers of the Executive Committee must be involved in the counting procedure.

5. Annual General Body Meeting

1. The Annual General Meeting will be held once in each calendar year at the time and place of the National/International Conference of IAPEN INDIA Association for Parenteral and Enteral Nutrition and as proposed by National Executive Committee.
2. Notice of the time and place of such meeting shall be communicated by the Honorary National Secretary to every member of the Society at least one month in advance.
3. Quorum: 10% of members shall form the quorum for a General Body Meeting
4. Adjournment: If within half an hour from the time scheduled for the General Body meeting quorum isn't achieved, the AGM shall dissolve for 10 minutes and reconvene to continue with proceedings including voting. No quorum is necessary for such an adjourned meeting. Every motion submitted to the meeting shall be decided by voting.

6. Agenda of the Annual General Meeting:

- . The agenda after approval from NEC for the AGM shall be circulated to all the members at least 2 weeks before the meeting.
- a. The Hon. National Secretary shall summon the meeting
- b. The Hon. National Treasurer shall operate the national bank account and present the audited accounts
- c. To receive and adopt the Annual Report of the Society as given by the National Secretary and National Treasurer on the activities of the association for the preceding year.
- d. To receive and adopt the Balance Sheet and Auditor's Report for the preceding year by the National Treasurer.
- e. To receive update by the Chapter Secretary and Core Group Program Officer about the activities and progress of same for in the preceding year.
- f. To receive details from the IAPEN INDIA Journal Committee about Journal of Nutrition Research for the preceding year.
- g. To receive details from the PEN Coordinator about details of the Associated PEN Society collaborations and events for the preceding year and to forward the goals of IAPEN INDIA.
- h. To approve the appointment of Auditor as recommended by the National Executive Committee.
- i. Declaration of the results of the election held. In case elections are incomplete, the same may be completed as per rules and regulations.
- j. To transact such other business as may be brought forward by the Board of Directors and/or National Executive Committee or any other business that may be permitted by the Chairman of which 7 days' notice has been given in writing.
- k. To consider any other business brought forward by or with the consent of the Chairman.
- l. Installation of the New Office Bearers if necessary and approved by Board of Directors and/or National Executive Committee.

7. Extraordinary s Emergency General Body Meeting:

- a. Extraordinary General Body Meeting may be called by the President or in his absence by the Vice-President [as specified in b.II] upon the request of the Board of Directors and/or National Executive Committee or the request of 1/3rd of the members of the organization.
- b. Request for such a meeting must state its objectives and must be signed by the requisitions and be deposited with the Hon. Secretary of the Society.
- c. Notice for Extraordinary General Body Meeting should be held within 15 days of receipt of requestC
Emergency General Body Meeting should be held within 3 days.

8. Meeting of the National Executive Committee:

- a. The President or in his/ her absence the Vice President [as specified in b.II] shall preside at the NEC meeting and shall have a casting vote if necessary.
- b. The quorum for the National Executive Committee will be one third of the total number of members

4. IAPEN INDIA CHAPTERS

IAPEN INDIA facilitates the organization of its members into different Chapters for the smooth functioning of the organization. Such Chapters which are permitted to be formed and exist, however, shall not have a separate legal status. These chapters are organized only for the purposes of administrative, convenience and efficient functioning. All chapters will follow the constitution of the central committee- IAPEN INDIA. There will be no separate constitutions permitted for Chapters. Each Chapter will be headed by the Chapter President and Chapter Secretaries.

4.1 Chapter Formation:

Formation of Chapters is a two-tier process.

- a) Defining a Chapter
 - i. Chapters can be formed if there are 25 Members residing within geographical areas defined as a district.
 - ii. A new Chapter within the state can be permitted if they can generate 25 members including any member from the Parent Chapter; provided the Parent

Chapter retains 25 members after releasing the members for the new Chapter formation within the geographical area.

b) Prospective Chapters

- i. Location with fewer health care workers / health care sectors / Educational Institute / who are interested to start a Chapter can apply for recognition and can start the Chapter after getting the approval from IAPEN INDIA NEC.
- ii. Each application should include a detailed list of the members of that location.
- iii. The decision of recognition of a Chapter is the prerogative of the IAPEN INDIA NEC only and its decision shall be final.
- iv. New Chapter can approach the established Chapter nearest to their geographical area for further support.

4.2 Memorandum of understanding with the IAPEN INDIA Central

Each Chapter should have a MOU with the IAPEN INDIA Central with regard to:

- a) The usage of Logo of IAPEN INDIA for Chapter activities.
- b) Compliance of Chapter office bearers with IAPEN INDIA's Finance, accounting and fund sharing protocols and SOPs.
- c) Compliance with IAPEN INDIA's constitution, amendments and rules and regulations and resolutions passed and adopted by IAPEN INDIA-NEC from time to time.
- d) There should appropriate communication between Chapters and center with respect to any change in chapter Office bearers/Activities etc.
- e) Entering into the MOU with the center is the prerogative of the Chapter and not doing so may lead to de-recognition of the Chapter.
- f) All authorized signatories of the Chapter should sign the MOU with the Center and are responsible for all the statutory financial compliance of the said Chapter and will be held responsible for any kind of non-compliance which may incur legal disciplinary action with provision of defence.
- g) In case of change in signatories, the same should be informed to the center within 7 working days and the MOU should be signed again.

- h) Non compliance in any aspect can lead to de-recognition of the members and the Chapter by NEC.

4.3 Composition of Chapter Office Bearers:

Each chapter of IAPEN INDIA comprises of the following:

1. Chapter President
2. Chapter Vice-President
3. Chapter Secretary
4. Chapter Treasurer
5. Joint Secretary / Joint treasurer (optional) 6. Chapter Executive Committee Members - 5nos

Maximum Office Bearers per Chapter- 10 nos.

4.4 Appointment of Chapter Executive Members (Through election needs to be specified later)

- a) The Chapter President, Chapter Secretary and Chapter Treasurer will be appointed by the National Executive Committee (no election) on honorary and non- remunerative basis on mutual consent.
- b) The Chapter President and Chapter Secretary can appoint the rest of the Office Bearers from the respective chapter Life Members after due approval from the NEC Members.
- c) All office bearers' tenure will be for 3 years from the date of appointment.
- d) Re-appointment of office bearers for the same post can be considered only if no other new members are willing to take responsibilities after approval from NEC.

4.5 Out Reach Program:

- a) Can work with public health sector /NGO for improving Community Nutrition.
- b) If Chapters are in tie up with any organization, there should be a MOU between the Chapter and organization. Approval by the IAPEN INDIANEC is essential for the same.

4.6 Chapter Activities:

- a) All activities need prior information and permission from the events NEC. Further details are mentioned in the events sop.
- b) Chapters can conduct an event as per objective of the Organization.
- c) Chapters and core groups can collaborate for activities and develop amiable relations with each other.

4.7 Other Recommendations:

- a) If the Chapter President/ Secretary /Treasurer is unable to attend any general and/or special meetings of the Association /AGM. He/she may depute to the NEC before the said meeting, in writing. Designated member should be selected by Respective Chapter Executive committee.
- b) The name of the officer/member who will substitute him/her as an official representative at the said meeting should also be mentioned and the nominated member of the Chapter can present the Chapter reports.

4.8 Responsibilities of Chapter Office Bearers:

- a) It is mandatory for all Chapter Office Bearers to be Life Members of IAPEN INDIA
- b) Chapter President
 - i. Guide and render advice on the activities of the Chapter. ii. Regulate the proceedings of chapter meetings and activities.
 - iii. Should endeavour himself /herself to improve the finances and academic activities of the chapter.
 - iv. May appoint chapter office bearers if and when necessary, with terms of references decided by the NEC.
 - v. She/he has the right to call chapter committee meetings during the times of emergency.

c) Chapter Vice President

- i. In case of the absence of the President, Vice-President(s) shall act as President.
- ii. Guide the meetings of the respective chapter.
- iii. Help the chapters in organizational activities.

d) Chapter Secretary

- i. In-charge of the chapter's official works.
- ii. Should handle all correspondence. He/ She shall correspond or represent on the official matters of the chapter to the central committee.
- iii. Should escalate matters communicated from the NEC to the other office bearers of the Chapter.
- iv. Should ensure that the decisions made by the NEC regarding any chapter concerns are carried out accordingly.
- v. Over-see general supervision of accounts; pass all bills for payments and sign cheques jointly with the Chapter Treasurer.
- vi. Ensures the Chapter Treasurer submit an annual statement of accounts, duly audited by the auditor, for presentation before the central committee.
- vii. Prepares budget and get it passed in the NEC.
- viii. Should organize, arrange and convene meetings, seminar, lectures, demonstrations etc. at the chapter level.
- ix. Keeping records of the presentations of respective chapter.
- x. Shall call chapter meetings whenever necessary(quarterly / year) xi. Meetings with NEC (yearly twice) and inform the chapter activities.
- xii. Should submit a report of number of meetings, activities held in the preceding year at the time of AGM in the prescribed format.
- xiii. Should prepare agenda for and keep a record of the minutes of the chapter meetings.
- xiv. Should take steps to improve the funds of the Society.
- xv. Shall share chapter details for newsletter to the editorial committee xvi. Should keep record of the names, last known addresses, mobile number and email ID of fellow Life members of their chapter.

e) Chapter Treasurer

- i. In the absence of the Chapter Secretary, have the powers, rights and duties as those of the Chapter Secretary.
- ii. Support the Secretary in chapter activities
- iii. Prepares budget and share with chapter secretary.
- iv. Should maintain chapter accounts and funds up to date.
- v. Will arrange collection of funds necessary for maintenance of the Chapter and its activities and keep them in deposit with a bank approved by the Society.
- vi. Issuing receipts for all values received for the Society.
- vii. Disposing of the bills for payments as sanctioned.
- viii. Will be responsible for keeping up-to date accounts and account books of the chapter.
- ix. Send monthly Bank Statement copy and the requested data in the standard Format shared by National Treasurer
- x. Should operate the accounts of the chapter jointly with the Secretary or the President.
- xi. Changes of office bearers should be notified to the bank as per banking laws
- xii. Should closely coordinate and abide with NEC for all financial compliances of the chapter along with Secretary and other authorized signatories.

f) Chapter Executive Committee Member:

- i. Executive Committee Members will act as an advisory board for the chapter.
- ii. Help in organizing meetings /seminar/lectures, etc.
- iii. Provide inputs to improve the funds of the chapter.
- iv. Steps to ensure increase in chapter membership
- v. Responsible to create, update and maintain all social media
- vi. To make fliers/videos for the events and activities.

4.G Removal of chapter office bearers:

- a) Any office bearer remaining absent for three consecutive monthly meetings without prior information/leave/ is liable to be removed from the post and committee with a simple resolution by the support of just three committee members.
- b) The member can appeal to the committee to withdraw its resolution of his/her removal of office bearers and from the committee by mailing the Chapter President citing the reason for abstinence from meeting within two weeks of his/her removal.
- c) The committee may consider withdrawal of his/her removal with the majority's approval or if the NEC permits.
- d) A member's repeat of such above abstinence will not have any provision to appeal against the committee's decision. However, the member can approach the IAPEN INDIA –NEC for a final decision and in case of status quo, same can be resolved by two third majority of the Board of directors.
- e) Any office bearer can be removed by the NEC from his/her post, committee membership if they are not contributing to Chapter's growth.

5. EVENTS / ACTIVITIES

5.1 Webinar /Continuous Nutrition Education (CNE)

a) Definition and scope

i. Short and easy-to-organize presentation by 1 to 2 speakers on a specific topic with duration of approximately one hour (40 min presentation + 20 min Discussion). b) Application

i. Any member willing to organize a webinar /event should submit the request to chapter Secretary, and the chapter secretary should send email to events NEC for approval events for approval ii. The application should include information on: Topic, Speaker, Date, and a short justifications to why the specific topic is considered of value to IAPEN INDIA.

iii. Application deadlines- 2weeks before webinar

c) Logos to be featured in all presentation slides if it is an IAPEN INDIA speaker

d) Promotional material such as flyers and email templates, display of logos to be featured in website.

5.2 Chapter CNEs

- a) Local Chapter Committee should inform the NEC 15 days in advance via events email about the CNE.
- b) Minimum of 4 activities per year per chapter required.
- c) Different health days in a calendar year to be celebrated.
- d) Community Outreach Activities can be undertaken with necessary approval from Local Authorities
- e) Can have collaborative programs either with other professional dietetic association's/ allied health associations like Nursing, Speech Language Pathologists, Occupational Therapists, Medical Associations etc. / Food Industry/ Nutrition supplements industry (all within the legal framework).
- f) Within one month of the program, account should be settled & shared with National Treasurer.
- g) Pictures with a small write up of CNEs should be shared with NEC to be published in Newsletter
- h) The Chapter Secretary has all freedom to conduct the CNE with the Topic and Speakers of their choice in consensus with their local office bearers; with due approval from the NEC Events committee.
- i) The Chapters Secretary should inform and get permission and approval only through the Official mail id for any event

5.3 Guidelines for the IAPEN INDIA Clinical Nutrition Congress

- a) The national annual congress of IAPEN INDIA needs to be organized preferably in the month of February.
- b) Venue/ location: Should be held in different zones of the country - South, North, East, West and Central.
- c) Duration of the congress : 2 days
- d) Should have provision for awards sessions and Annual General Body Meeting of the association.
- e) Program of the conference:

- i. The primary focus should be on the academic aspects of the various sub areas of interest to various sections, profiles of the members.
 - ii. The conference should consist of workshops, lectures, poster C paper presentation (in the form of competition) thus being a robust academic fest.
 - iii. Exhibition by the sponsoring companies
- f) Bidding, Hosting, allocation criteria
- i. The chapters can nominate themselves for hosting forthcoming year's ICNC, when the NEC members announce for the same.
 - ii. Chapters capable of holding the conference can bid to host based on logistics such as: Connectivity, Accommodation facilities, Infrastructure and Member strength.
 - iii. The chapter needs to submit the details about the number of member in the chapter, year of the chapter initiation, previous year activities and financial commitment to the National Secretary iv. The conference is bid by the chapter, it should have nominated its chairman of the conference and organizing secretary of the conference C working team g) Registration fee:
- i. On the basis of membership criteria- Member, Non-Member, Student Member.
 - ii. All to be decided by the Organizing Chapter e.g.- early bird, late registration, spot registration.
- h) Formation of Sub-Committees
- i. Organizing Chapter should form sub-committees for effortless execution of Conference's logistics ii. Sub-committees may include (but not limited to)
 - Reception, Hospitality committee
 - Scientific committee
 - Exhibition committee
 - Finance committee
 - Accommodation committee
 - Travel committee
 - Registration committee
 - Souvenir, Brochure committee
 - Communication C Media (Website /social media)

- Audio visual committee
- Food C Catering committee
- Stage Management committee
- Any other committee based on the requirement of the

hosting chapter i) Budget

- i. Funds raised by the Organizing chapter
- ii. Different awards with valuations to be fixed after discussion with NEC.

j) Other recommendation

- i. Local and National organizing committees should be established ii. Annual congress will be hosted by local chapter. There shall be some liberty given to the regional chapter to select (50:50) speakers – all in constant sync and approval with the NEC for all critical aspects.
- iii. Scientific- Chairman / secretary both from centre scientific committee of the regional chapter. Other than scientific- Local organizing committee for venue, logistics. All mails should go from the ICNC official email to national and international speakers.
- iv. MOU to be signed by President, Secretary C Treasurer of the chapter which is going to conduct the event with Center.

6. CORE GROUP

Core Group is formed by a panel of experts who are life members of IAPEN INDIA in the specialized field that convenes the practitioners and public health professionals in clinical, sports and community health to share knowledge, evidence and best practices.

a) Aim:

- i. To improve clinical, fitness and community health practices for underserved and vulnerable populations, especially women, children, adolescents and aged through evidence based collaborative action and learning

b) Objectives :

- i. To advance the field of scientific nutrition in hospital and community health by developing case studies, evidence based guidelines and analysing research data from the relevant field creating training curriculum and conducting workshops, developing, monitoring and evaluation of trainings and tools, fostering in-country collaboration and advocating for Community Approaches to Health.

6.2 Structure of IAPEN INDIA Core Group

a) Core Group Heads

- i. Consists of minimum 2 program officers.
- ii. Acts as coordinators between the Core Groups and NEC.
- iii. All issues pertaining to core group functioning will be taken up for discussion through core group representatives.

b) Core Group Committee: Each committee Comprises of 6 members viz

- i. Program Officer
- ii. Joint program officer/ Mentor
- iii. Research Coordinator
- iv. Media Coordinator
- v. International Advisor
- vi. National Advisor.

c) Members

- i. To become core group member one has to be a IAPEN INDIA Life member
- ii. Members representing core group committee cannot be a core committee member of another core group.
- iii. A core group committee member can be an expert or an advisor to the other core groups
- iv. All core groups have one honorary International Invitee, preferably of non Indian origin on the panel of advisors

6.3 Governing Council (GC) of Core Group- proposed structure

- a) Comprises of program officers of each core group.

- b) Will be responsible for functioning, developing, keeping core group active, and ensuring ethical and legal fund management of each group.
- c) Form policies for development of each core group
- d) Appoint ethical committee for research studies or collaboration with educational institutes for research and ethical committee provisions.
- e) Appoint statistician if required
- f) May appoint study design committee
- g) Appoint any other personnel required for core group progress or functioning
- h) Approval of any new core group and getting it sanctioned through the central executive committee
- i) Approval of core group Annual budgets, expenses and finance
- j) Collaboration or association with credible institutes, societies and organizations
- k) Responsible for resolving all core group related grievances within one month of receiving appeal from the aggrieved person.

6.4 Working Committee:

- a) Program officer/ Mentor RESPONSIBILITIES:
 - i. Responsible for overall functioning of core group
 - ii. Updating and improving core group progress, framing policies, planning roadmap for core group
 - iii. Head of core group event management iv. Head of grievances
 - v. Appointment of advisors vi. Contact person between central committee and core group committee.
- b) Mentor RESPONSIBILITIES :
 - i. Responsible for smooth and effective running of the Course ii. Planning the Syllabus
 - iii. Recommending appointment of teachers iv. Co coordinating with teachers for all academic issues v. Effectively handling student queries-doubts vi. Conducting exams, correcting papers, announcing results, disbursing certificates

- c) Joint Program Officer RESPONSIBILITIES:
- i. Responsible for all core group communication including organizing conferences, CNEs, webinar
 - ii. Co coordinating with National Secretary
 - iii. Execution of central committee guidelines
- d) Core Group Media coordinator (Media includes What's App, Telegram, Instagram, Twitter, Face book and YouTube Channel and excludes Print and Television media)
- i. Responsible to create, update and maintain all social media
 - ii. Should make fliers/videos for the events and courses
 - iii. Post on core group media platforms and National web page.
 - iv. Coordinating with Central Committee media Executive
 - v. Responsible for communicating with main stream media including electronic and print
- e) Research Coordinator
- i. Will represent core group and report to chief editor of IAPEN INDIA journals.
 - ii. Promoting research activities in the core group
 - iii. Will be responsible for making research proposal along with Principal Investigator (PI), Co PI, core group committee clearance, ethical clearance, conduct research and publish the same. Coordinating with journal publication committee and chief editor to publish core group research papers.
 - iv. Coordinating with individuals and institutes to raise fund for research papers.
 - v. Responsible for encouraging core group members to write paper and present in Conference. Also to encourage them to write articles for IAPEN INDIA newsletter.
 - vi. Ensures at least one article is sent from the respective core group for each news letter
- f) Advisors and Experts:
- i. Should be an expert in the field of interest
 - ii. He/ She cannot be accommodated in the core committee
 - iii. Can be a member of any other core group committee
 - iv. Can be an Ex chairperson of any core group

- v. Can be a designated officer at any chapter committees, core groups or NEC

6.5 Decision Making Process

- a) All decisions have to be taken through core group committee meetings.
- b) Program Officer will have some subjective discretionary powers to take decisions in emergency. These powers will be decided by the NEC. If the decisions are controversial it has to be referred to core group committee even if they have discretionary powers.
- c) During an emergency, when it's not possible to call a physical or virtual meeting and a decision has to be taken immediately - any media like WhatsApp, Telegram, con call can be used for member's consent and the same should be ratified in the next core group meeting.

6.6 Calendar of events- proposed structure

- a) One half day CNE in a year, at different chapters every year.
- b) One webinar in a year
- c) One community service/event per year.
- d) At least one research paper per core group in a year to be published in IAPEN INDIA journal.
- e) One National-International Conference of one or one and half days in every 3 years.
- f) It is mandatory to send All National conferences proposal to NEC for approval and further to submit it to NEC for sanction.
- g) Multiple core groups related with common topic can come together and organize conferences.
Eg: Dysphagia and Neuro nutrition, Renal and Hypertension-can organize jointly
- h) Any core group organizing a national-International conference in a year is exempted from organizing all other mandatory events. However if they wish they can still organize them.
- i) Work shop during ICNC as per ICNC scientific committee guidelines

6.7 Core Group accountability and grading:

- a) All core groups are accountable and answerable to the NEC.
- b) All core groups have to present their achievements, performance during AGM or at a suitable event as guided by NEC
- c) All core groups may be internally graded as E.g. A+++, A++, A+ to make it competitive.
- d) To encourage competitiveness all core groups achieving **A+++ grade** should be honoured in the AGM.
- e) A standard accreditation type grading may be formed by national core group committee to keep it transparent

6.8 Finance and funding of Core Group activities:

- a) All financial transactions of all core groups including ESPEN LLL, Quality Awards will be operated through NEC account
- b) National treasurer should keep this account updated every month to be presented to national Financial Advisor when required.

7. IAPEN INDIA COURSES

7.1 Aim

- a) To forward and create a platform for learning at par with any nutrition education of repute.
- b) To make the courses at par for any niche nutrition learning and the kind that the fraternity acknowledges as at par with national and international standards focus should be on clinical dietetics and nutrition.

7.2 Eligibility Criteria

a) Month Certification Courses

- i. Graduation in Nutrition or Nursing (B. Sc and above), Pharmacist (B- Pharm or above), Bachelor of Physiotherapy and Bachelor of Occupational Therapy. The Medical professionals (MBBS,MD) recognized by Medical Council of India. Nutrition Graduates, Registered Dietitians recognized by the Indian Dietetic Association and Life member of IAPEN INDIA.
- ii. (<https://www.diabeteseducatorsindia.com/membership/eligibility.aspx>) iii. Basic Qualification and Eligibility Any Health Science professional with Undergraduate or Postgraduate Degree and as recognized by the respective council, with minimum 2 years of practical experience in health care setting can apply.
- iv. **General Eligibility** - Should be an IAPEN INDIA life member

b) One And A Half Year Courses

- i. MSc with Dietetics as background/ MBBS/ 5 years of Clinical Dietetic Experience
- ii. Home Science graduates with a semester in Nutrition education may be included only after taking a 6 month certificate course and an interview
- iii. More addition of Eligibility Criteria shall be included depending on the nutrition graduation degrees granted in different states and health care council.

7.3 Course Outcome of 6 month certification course

- a) Provide an intensive, evidence based, self-paced learning program
- b) Provides practitioners the latest information on implementing nutrition care in selected core areas per the course.
- c) Course will be assisted by the members of the Certification Board and experienced doctors and dietitians from across the country
- d) The certification program provides a balance of background information, current research and practical information in selected field of nutrition.

7.4 Formation of IAPEN INDIA certification board and list of mentors

- a) Physical training centers
- b) Final examination
 - i. Conducted as a proctored Online Examination, as of now.
- c) Application process
 - i. Direct enrolment is not entertained.
 - ii. Candidates have to mail their complete bio-data to gather more information about the course.
 - iii. Designated member of Nutrition Support Certification Board of IAPEN INDIA would assess the bio-data and accept the enrolment of the candidate.
 - iv. Time of revert would be a minimum of 3 working days.

7.5 'Insight' Newsletter

- a) IAPEN Insight will be the showcase magazine of IAPEN INDIA and will be operated from the centre.
- b) Minimum 1 article to be submitted by each chapter for the newsletter
- c) Chapter activities/ individual chapter member's achievement to be shared for the newsletter.
- d) IAPEN Insight will include a provision for advertisements from companies and healthcare setups at a previously agreed cost, though IAPEN INDIA does not endorse any product or healthcare setup advertised.
- e) The newsletter committee will include- Chief Editor, Assistant Editor, and Content Manager who are Life members of the association and nominated by NEC.
- f) The designing of the newsletter will be outsourced and quotation from different vendors will be submitted for yearly contract.

7.6 Awards and recognitions

- a) The association may confer the awards and recognitions instituted by the NEC
- b) The fellow of IAPEN INDIA is a prestigious award given by the associate members of the director and executive council for the life time contribution to the IAPEN INDIA

8. JOURNAL OF THE ASSOCIATION

- a. The name of the official journal of the Association shall be IAPEN INDIA" Journal of Nutrition Research (JNR)".
- b. The National Executive Committee shall decide on the policies regarding subscription and other guidelines for the publication of the Journal, on the advice of Editorial board's recommendations.
- c. **The Editorial Board** decides whether or not to accept manuscripts after overseeing the peer review procedure. Experts in clinical nutrition, medicine, academics, and research make up the Editorial Board, which makes sure that each contribution is reviewed by a professional with an active research career.
- d. The formation of the editorial board should be elaborated like
 - a) Number of members – 15
 - b) The eligibility criteria – as per decided by NEC and editorial board
 - Former editorial board members of similar or competing journals
 - Authors of key reviews in the journal's discipline
 - Frequent authors or reviewers in competing journals
 - Experts listed on institute and society websites
 - Former guest editors of other similar journals
 - The Senior Editorial Board is selected based on exceptional contributions to the journal.
 - c) The duration of the tenure – 3 years with corresponding to other core group appointments

The Editorial Board should comprise of following positions/ posts

1. **Editor-in-Chief:** The leader responsible for overseeing the entire editorial process. They set the vision, tone, and direction for the content. Editor in chief is responsible for the quality of content included in their journals. Editor In chief and Managing Editor are responsible for indexing the journal.
2. **Managing Editor:** Coordinates the team's efforts, manages deadlines, and ensures smooth workflow. Managing daily administrative tasks, and arranging the document flow (from author to the publisher). Will call for monthly meetings of Editorial Board, Prepare agendas and MOM and its circulation to the members.
3. **Senior Editor:** Senior Editors are accountable for smooth, effective and prompt communication between authors, reviewers, and publisher. They should be able to recognize significant "hot topics," and identify excellent contributors, they should handle manuscripts in a broad range of topics within their general areas of expertise, in addition to advising on editorial board and journal development.
4. **Associate Editor (2 posts) / Content Editor:** Focuses on improving content quality, clarity,

and coherence. They refine language, structure, and overall readability. Content Editor: Focuses on improving the quality, clarity, and coherence of content. They refine language, structure, and overall readability. In addition, they should advise the editorial board for journal development.

5. Member of Editorial Board (10 Posts and minimum one post from Academic background)

:Approaching potential contributors Peer review; also help to identify peer reviewers and provide second opinions on papers (i.e. where there is a conflict between reviewers) Identify appropriate conferences for editors to attend. Endorse the journal to authors, readers, and subscribers and encourage colleagues to submit their best work. . In addition, they should advise the editorial board for journal development.

- e. The Editorial Board will be appointed by the National executive committee.by inviting applications from association's life members.
- f. The printing, sales and publication responsibilities will be given to the private publication division as per Editorial Board's advise
- g. The publication division can also be changed by taking approval of the IAPEN INDIA National executive committee members in the governing body meeting.. -
- h. The Board members shall be nominated from among the Life members of the Association.
- i. The term of the Editorial Board shall synchronize with that of the National Executive Committee.
- j. Earning and share of the association to be shared

G. FINANCE

G.1 Auditor

The Executive Committee shall appoint and fix the fee of the Auditor who shall be a Chartered Accountant.

G.2 Article -Nomination of Delegates for International Conferences

Official delegates to the International Conferences will be recommended by the Society on the basis of the following criteria:

- a) A LIFE member should have a minimum of three years standing in the Society

- b) She should have attended three conferences and published at least three scientific paper sin peer reviewed indexed journals during the preceding 5 years.
- c) The paper for presentation should be accepted or the member has been invited by the Organizing Committee of the Conference.
- d) The final selection amongst candidates fulfilling the above said conditions is left to the National Executive Committee.

G.3 Special Meetings

- a) Special meetings of the Association may be convened by the National Executive Committee or requisitioned by at least 50 Council members for transacting specific business.
- b) The request for requisition shall be addressed to the General Secretary specifying the object for which the meeting is to be convened.
- c) On receipt of such a requisition, the EC shall cause a meeting to be convened within two months of its receipt at such time and place as may be decided by the EC.
- d) The General Secretary shall give at least three week notice to the members and no business, other than that notified, shall be transacted at this meeting.

G.4 Article-Authorized Signatories

- a) The Association shall be represented in any Legal proceeding or before any Court /Tribunal/ Authority of Law only by the President
- b) In a situation where one of the above is unable to sign, the Executive Committee shall decide on an alternative signatory.
- c) All bank accounts, deposits and other investments shall be opened, kept and made in the name of IAPEN INDIA Association for Parenteral and Enteral Nutrition.
- d) The bank accounts shall be operated as follows:
 - i. All cheques shall be signed only by the Treasurer acting jointly with the Director or the Secretary.
 - ii. In a situation where one of the above is unable to sign, the Board of Directors shall decide on an alternative signatory.

- e) Members attending the National Executive Committee (NEC) meetings are entitled to the expenses for travel from residence to the meeting destination at reasonable rate.
- f) The travel expenses for the Directors, National President, Vice presidents, Secretary, Treasurer and Editors in chief shall be borne by the central office for any in person BOD meetings and ICNC and promotional meetings or seminars of the association
- g) The travel expenses of all other chapters President, Secretary and treasurer shall be done by the respective chapter with prior intimation and approval from NEC provided they have sufficient funds and to 25% of the amount can be utilized here- or maybe only president, secretary and treasurer
- h) The accounts of the Association shall be consolidated with all the accounts of all the Chapters duly audited of each respective chapter.
- i) The accounts shall be circulated to all members of the National Executive committee (NEC) prior to the NEC meeting and such accounts shall be placed before the NEC for approval.
- j) No members of the NEC shall be responsible for any errors/ discrepancies arising in any audited accounts of any chapter and each Chapter president and the members of the local chapter shall be responsible for the same.
- k) All Chapter treasurers shall furnish the accounts of the Chapter to the Center by 4th of each month and consolidated at the end of every year after approval by the executive committee to the Treasurer of the Association duly audited every year.
- l) Title to the real property of the Association shall be vested in the two third majority of National Executive Committee who shall have power to sell, lease after approval from board of directors.
- m) Mortgage or otherwise deal with the same only with the prior approval of the NEC and Board of Directors.
- n) The Board of Directors shall take care of all funds of the Association using the capital and/or income from them for the purpose for which they are held.
- o) All membership amounts may be invested as fixed securities and the interest utilized for Association purposes.
- p) After a chapter gets 50 members, the amount received through membership will be 50 % to chapter and 50% to central.

- q) At the end of every convention the auditor of the local chapter shall audit the accounts of the convention and send it to President for placing the same before the executive committee
- r) These audited accounts shall be independent of the regular accounts of the chapter.
- s) Budgets shall be prepared in consultation with the secretary and Treasurer and placed before the NEC for approval.
- t) Audit report is available on demand by IAPEN INDIA Life members on discretion of NEC.
- u) MOU or chapter agreement should be signed between chapter and centre
- v) Account statements should be shared on a monthly basis (latest by 4th of each month) by the chapters with the centre with the invoices, receipts etc.
- w) All invoices and receipts should be centralized to maintain uniformity

Contact treasurer@iapenindia.org for opening new bank accounts and any further details.

- x) The chapters can avail the services of the accountant and CA at the centre on request, GST details (User ID and password) to be submitted to the central accountant and Central CA for cyclic GST filing.
- y) 15 % of funds collected of the chapter should be transferred to the centre on yearly basis.
- z) All accounts should be closed for the financial year on 31st March and the 15% to be transferred on or before 20th April each year to the centre for Income tax returns. All membership fees will be collected at the central IAPEN INDIA account.

NON-COMPLIANCE BY CHAPTER WILL MAKE OFFICE BEARERS LAIBLE
ANDWILL BE SUBJECTED TO HEAVY PENALTY ASDECIDED BY NEC

G.5 Central Accounts

- a) There will be 3 signatories of the central account – National treasurer, national Secretary and one director.
- b) National treasurer is responsible for filing GST returns and ITR compliance at the centre.
- c) National treasurer will coordinate with National accountant and National CA for financial compliances.
- d) National treasurer will coordinate with chapter treasurer for chapter compliances.

G.6 State/ Chapter Accounts

- a) State/ Chapter account signatories to be changed according to change in committee and SecretaryC treasurer to manage the same and to be intimated to NEC within one week of passing there solution in local chapter meetings.
- b) The intimation should have the extracts of the complete resolution e.g.: Agenda, proposer, seconder and resolution passed-unanimously or by majority.
- c) All State/ chapter accounts to have 3rdsignatory out of which one shall be the President.
- d) State/ Chapter level accountant to report to central accountant who will coordinate with the Central Chartered Accountant
- e) State/ Chapter guidelines for financial autonomy- Chapter to have at least 100 members or 2 lakhs of fund accumulation within 3yrsof formation of chapter or at least 3 activities yearly and generation revenue of at least 2 lakhs in3 years.

G.7 Redressal of Grievances

- a) Any individual with grievance should approach the chapter president/secretary for satisfactory resolution.
- b) They can decide as per the merit of the case to resolve it on an individual and mutual understanding between the parties.
- c) The aggrieved person has the choice of method of resolving the issue at individual or at committee meeting level.
- d) The issue needs to be resolved competently within maximum one month from the day of reporting.
- e) In case the grievance is not resolved within one month, or the aggrieved person is not satisfied with the resolution or judgment at chapter level, can approach National Executive Committee within 7 days of chapter judgment.

G.8 Redressal of Grievances for Core group

- a) Any individual with a grievance should approach the Program Officer of respective core group for satisfactory resolution

- b) Decisions can be made as per the merit of the case to resolve it on an individual and mutual understanding between the parties or can take it into the core group committee and resolve it through them and with support of NEC.
- c) The aggrieved person has the choice of method of resolving the issue at individual or at committee meeting level.
- d) The Program Officer should take the issue in the earliest possible core group committee and resolve it competently within maximum of one month from the day of reporting.
- e) In case the grievance is not resolved within one month or the aggrieved person is not satisfied with the resolution or judgment at core group level, can appeal to NEC. Within one month of receipt of appeal against core group judgment. NEC has to resolve within maximum one month.

10. Guidelines for Memorandum of Understanding (MOU)

- a) IAPEN INDIA encourages MOUs between IAPEN INDIA and other entities interested in the vast area of nutrition.
- b) Scope of MOU should be within the ambits of the declared aims and objectives of establishing IAPEN INDIA.
- c) IAPEN INDIA advises that all MOUs should be broad and enabling.
- d) MOUs can be entered with other associations, societies, universities, educational bodies, institutions, departments, corporate, event managers, publishing houses and similar entities in India or abroad.
- e) MOUs should be restricted with entities which have established interest in nutrition, education or research.
- f) MOUs should not be entered with individuals.
- g) MOUs can be entered by IAPEN INDIA national executive or state chapters or core groups.
- h) Either the President or the Secretary IAPEN INDIA can be the signatory in which IAPEN INDIA itself is a party. Status of the MOU should be part of the annual report.
- i) Local organizing committees of various IAPEN INDIA events can enter into MOUs for the purpose of the said event.

- j) In case of MOUs in which state chapters or core groups are involved, MOU starts and end with the respective state chapter or core group and the IAPEN INDIA will not be a party to it. While entering into MOU, an intimation regarding the MOU should be sent to IAPEN INDIA.
- k) While entering MOUs, all the applicable laws of the land have to be complied.
- l) All MOUs in which the opposite party is outside India, MOUs should be entered only by the IAPEN INDIA central committee. Else, a specific permission of IAPEN INDIA National Executive Committee should be obtained prior. Even so, MOU starts and end with the respective state chapter or core group and the IPEN India will not be a party to it.
- m) In any MOU in which financial transactions are anticipated, the account information has to be revealed in the MOU and the transactions have to follow the specific guidelines of financial transactions of IAPEN INDIA.
- n) IAPEN INDIA will not have any responsibility in financial assets, income, transactions or liabilities arising out of MOU in which IAPEN INDIA itself is not a signatory. This applies to both-direct and indirect financial assets, income, transactions or liabilities.
- o) IAPEN INDIA advises that the maximum duration of MOU should not exceed three years and if needed the period can be extended with another agreement between both parties.
- p) The status of MOU has to be mentioned in the annual report of the state chapter or core group to IAPEN INDIA.
- q) The detailed contents of the MOU can be finalized between both parties safeguarding the interest of IAPEN INDIA.
- r) These guidelines should be intimated to all parties with whom IAPEN INDIA or its state chapters or its core groups are entering an MOU and both parties have to ensure that guidelines are adhered to.
- s) IAPEN INDIA NEC, at its discretion, reserves its right for disownment of any MOU entered between its state chapters or core groups or local organizing committee with other firms on opposite side if it desires so.
- t) When disownment is done, the intimation will be sent to both parties by NEC IAPEN INDIA. Both the parties should consider this disownment as an advisory.

10.1 Funds and assets

- a) The funds of the Association shall consist of:
 - i. Application/Registration Fees
 - ii. Membership Fees
 - iii. Proceeds of the events
 - iv. Course fees
 - v. Academic workshop or conference fees
 - vi. Contributions, donations, and grants from any source
 - vii. Income from investments
 - viii. Gifts or legacies of immovable or movable property
 - ix. CSR
 - x. Corporate funding

10.2 Amendments

- a) This constitution may be amended by two-third affirmative votes of the Chapter Secretary present at the annual assembly but with final approval from the two third majority of board of directors and founding directors.
- b) The proposed change has been circulated to each regional coordinator 60 days in advance of the general body meeting.
- c) On the recommendations of the Board of Directors, the NEC shall appoint the auditors.
- d) Auditors appointed at one annual council meeting will audit all papers and books of accounts of the Association for one year and are eligible for re-appointment.

10.3 Article XV

Indemnity of Founder Directors, Board of Directors, Life Members of the Association, National Executive Committee and the Officers and their heirs, executors and/or administrators shall be indemnified and saved harmless out all actions, costs, losses, damages etc., resulting from execution of their duties to promote the betterment of the Association.

10.4 Chapters

- a) The chapter shall translate the spirit of these bylaws at the Chapter level.
- b) The chapter shall hold at-least 6 academic meeting in a Year to update its members in the field of Clinical nutrition and dietetics.
- c) The chapter shall co-operate with the IAPEN INDIA National Executive council to ensure the smooth administration of the affairs of the Association and shall endeavour to enrol new members and shall endeavour to create an atmosphere of Study, Research and Discussion.

10.5 Dissolution

- a) In the event of need to wind up the Association, a special general board of directors meeting shall be called expressly for this purpose, that is after due notice to all the members of the board.
- a) Resolutions on the dissolution of the Association shall require at least three fourths majority of the votes of the Board of Directors and National Executive Committee and chapter Secretary with founder directors.
- b) A minimum of 40 chapter secretaries should be present for dissolution of the society or 2/3rd mandate of the number of people present
- c) In the event of dissolution of the Association, the Directors along with Board of Directors shall decide the manner in which claims and liabilities are to be disposed off.
- d) The remaining assets, if any, shall be distributed to organizations or institutions with similar objectives as decided by the Directors and Board of Directors.
- e) The Directors, Board of Directors with President of the IAPEN INDIA Association shall be the liquidators.